

“Voices of the Future: Understanding and Safeguarding Child Rights”

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Who is a Child?



- A child is any person below the age of 18 years (UNCRC definition).
- Legal age may vary in different Indian laws (e.g., Juvenile Justice Act, Child Labour Act).
- Children are in a crucial stage of physical, mental, and emotional development.
- They require protection, care, and guidance.
- Recognizing a child helps in providing appropriate rights and safeguards.
- Children have limited capacity to make decisions; hence legal protection is vital.
- Childhood is a critical phase for laying the foundation of life skills.

What are Child Rights?

- Child rights are basic freedoms and entitlements of every child.
- Based on four core principles of the UNCRC:
 1. Right to Survival
 2. Right to Development
 3. Right to Protection
 4. Right to Participation



- Enshrined in the Indian Constitution and laws (Article 21A, 39, 45).
- Ensures access to education, health, nutrition, identity, and protection.
- Special care for vulnerable groups (disabled, girl child, street children).
- Recognizes children as active participants in society.



What is Child Marriage?



- Marriage where either of the parties is underage (girls <18, boys <21).
- Prohibited under the Prohibition of Child Marriage Act, 2006.
- Often results from poverty, illiteracy, and societal norms.
- Girls are more affected due to gender discrimination.
- Leads to early pregnancy, school dropout, domestic violence.
- Child marriage is a human rights violation.

Preventing Child Marriage

- Legal tools: PCMA 2006, POCSO Act, JJ Act.
- Government schemes: Beti Bachao Beti Padhao, Sukanya Samriddhi Yojana.
- Role of NGOs, community leaders, schools in raising awareness.
- Educating girls is the most effective strategy.
- Childline 1098 for reporting early marriages.
- Empowering youth and parents to say no to early marriage.

Children's Right to Participation

- Children have the right to express views freely (UNCRC Article 12).
- They should be heard in decisions affecting their lives.
- Participation builds confidence and responsibility.
- Involves school, home, community, and governance.
- Encourages critical thinking and leadership.



Promoting Participation



- Platforms: School cabinets, children's clubs, Bal Panchayats.
- Government and NGOs promote participatory spaces.
- Adults must respect and consider children's opinions.
- Participation should be age-appropriate and meaningful.
- Example: Child reporters raising issues in their community.

Right to Education – Introduction

- Article 21A: Free and compulsory education for children 6–14 years.
- RTE Act 2009: Landmark law ensuring education as a right.
- Emphasis on equity, quality, and inclusive education.
- No child shall be denied admission due to lack of documents.

Provisions under RTE Act

- Free textbooks, uniforms, mid-day meals.
- No corporal punishment.
- Continuous Comprehensive Evaluation (CCE).
- 25% reservation in private schools for EWS.
- Teacher-student ratio regulations.



Challenges & Improvements

- High dropout rates, especially among girls and marginalized groups.
- Poor infrastructure in many schools.
- Digital divide and learning loss post-COVID.
- Role of NEP 2020 in enhancing education.
- Community involvement and monitoring.

ICDS – Overview

- Integrated Child Development Services (launched 1975).
- Provides health, nutrition, and preschool education.
- Target group: Children under 6, pregnant and lactating mothers.
- Delivered through Anganwadi Centres.

Services under ICDS

- Supplementary nutrition.
- Immunization and health check-ups.
- Non-formal preschool education.
- Nutrition and health education for mothers.
- Referral services.
- Focus on physical and mental development.

Strengthening Early Childhood Care

- Training of Anganwadi workers.
- Infrastructure and quality of services.
- Community participation.
- Convergence with NHM and education departments.
- Government programs like POSHAN Abhiyaan.

What is Child Labour?

- Work that deprives children of their childhood and education.
- Illegal under Child Labour (Prohibition and Regulation) Act.
- Includes domestic work, factory work, street vending, etc.
- Affects health, development, and dignity.

Causes and Impact

- Poverty and lack of education.
- Family pressure and social norms.
- Exploitation and abuse at workplaces.
- Leads to long-term physical and emotional harm.
- Traps children in a cycle of poverty.

Combating Child Labour

- **Laws: CLPR Act 2016, Right to Education.**
- **Rescue and rehabilitation by Childline and NGOs.**
- **Awareness campaigns.**
- **Vocational training for rescued children.**
- **Community vigilance and government inspections.**

Juvenile Justice System - Introduction

- Concerned with children in conflict with law and in need of care.
- Governed by Juvenile Justice (Care and Protection of Children) Act, 2015.
- Children under 18 are not treated as adults.
- Focuses on rehabilitation and reintegration.

Mechanisms of JJ System

- Juvenile Justice Boards (JJBs) and Child Welfare Committees (CWCs).
- Observation homes and special homes.
- Legal aid, psychological support, and counseling.
- Child-friendly procedures.

Challenges & Way Forward

- Stigma faced by juveniles post-release.
- Delays in justice and inadequate infrastructure.
- Need for trained staff and better monitoring.
- Greater investment in rehabilitation.
- Awareness on children's rights among law enforcers.

Conclusion

- Children are the future of society.
- Their rights must be protected and promoted.
- Education, protection, participation, and development are vital.
- Collective efforts from government, NGOs, communities, and individuals are essential.

Thank You

